

25NNCV06988 25NNCV06988

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Case Number: 25NNCV06988 Hearing Date: September 18, 2026 Dept: B

Hon. Victor

Avila, Dept B

MOTION FOR TRIAL PREFERENCE

Hearing Date: 9/18/26

CASE NO.: 25NNCV06988

CASE NAME: Pacific Dental Services, LLC vs.

Magnolia Vineland OPCO LLC, et al.

Moving Party: Defendants Magnolia

Vineland OPCO LLC and Westwood Financial LLC

Responding Party: Plaintiff Pacific Dental

Services LLC

Notice: Sufficient

Ruling: DENY

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 3:30 P.M. ON THE COURT DAY

BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a breach of contract action related to an unlawful detainer action. On February 11, 2021, the parties entered a lease agreement for a commercial property. On October 2, 2025, tenant and plaintiff Pacific Dental Services LLC (Plaintiff), filed an initial Complaint against landlords and defendants Magnolia Vineland OPCO LLC and Westwood Financial LLC (Defendants). On July 17, 2026, Plaintiff filed a Second Amended Complaint (SAC) seeking declaratory relief regarding rights and obligations under the lease and asserting breach of contract.

On October 24, 2025, Defendants filed an unlawful detainer action against Plaintiff. On November 11, 2025, Defendants attempted to relate the instant action to the unlawful detainer action, but the request was denied.

On July 30, 2026, Defendants filed the instant motion for trial preference. On September 4, 2026, Plaintiff filed an opposition. On September 10, 2026, Defendants filed a reply.

REQUEST FOR JUDICIAL NOTICE

Plaintiffs request judicial notice of Exhibit: (A) The Court's April 16, 2026, Minute Order. The request is granted. (Evid. Code, § 452 (d).)

LEGAL STANDARD

Code of Civil Procedure section 36, subdivision (e), provides, in pertinent part, that "the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the

interests of justice will be served by granting this preference".¿ (Code Civ. Proc. § 36, subd. (e).)

"Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party." (Code Civ. Proc., § 36, subd. (f).)

DISCUSSION

Defendants argue

that the Court is justified in granting preference under Code of Civil Procedure section 1062.3, which authorizes expedited trials in declaratory relief actions. (Mot., p. 6; Code Civ. Proc., § 1062.3(a) "actions brought under this chapter...shall be set for trial at the earliest possible date and shall take precedence over all other cases".) Further, Defendants argue that since the unlawful detainer action has been stayed, this action is the only avenue for Defendants to adjudicate the claims. (Mot., p. 7.) Defendants argue that they continue to suffer financial and prejudicial harm through Plaintiff's withholding of rent monies as long as this action is delayed and not adjudicated. (Mot., pp. 8-9.) Thus, Defendants argue the matter must receive trial preference in the interest of justice.

In opposition, Plaintiff argues that

there are no exigent circumstances warranting preferential trial treatment. (Opp., p. 3.) Plaintiff argues that Code of Civil Procedure section 1062.3(a) does not support Defendant's position because this action is based in breach of contract with an accompanying declaratory relief cause of action, not a sole declaratory relief action. (Ibid.) Plaintiff concedes that Defendants suffer financial harm as articulated but argue that if parties were able to obtain preferential treatment due to financial harm alone, every case in Southern California would be entitled to trial preference. (Ibid.) Further, Plaintiff argues that the Court already weighed the harm suffered by both parties and decided that Plaintiff's harm outweighs Defendant's financial harm in deciding to stay the unlawful detainer action. (Opp., p. 4; RJN, Exh. A.) Thus, Plaintiff argues that Defendants do not show that this action requires a preferential trial schedule. (Opp., pp. 4-5.)

In reply, Defendants reiterate that Plaintiff has withheld \$699,047.80 in rent based on its own interpretation of the lease. (Reply, p. 2.) Defendants reiterate that since the unlawful detainer action was stayed, this action is the only way to obtain relief and possession of the property. (Ibid.) Defendants argue that the April 16, 2026, Minute Order was addressing prejudice that comes with staying the unlawful detainer action, not prejudice associated with obtaining trial preference. (Ibid.) Further, Defendants argue that Plaintiff does not dispute the ongoing financial harm Defendants are suffering. (Reply, p. 4.)

The Court is afforded discretion to grant or deny a preferential trial date “in the interest of justice”. (Code Civ. Proc. § 36(e).) The Court acknowledges the ongoing financial harm Defendants cite as a result of Plaintiffs withholding rent. However, financial harm arising out of contract alone is not a basis for trial preference. (Code Civ. Proc. § 36(e).) The Court is persuaded by Plaintiff’s argument that if every case citing financial harm received trial preference, Court calendars would become even more impacted. While the April 16, 2026, Minute Order was addressing a different question, the Court is also persuaded by its previous finding that Defendant’s financial prejudice is not substantial enough to prevent staying the unlawful detainer action. (See RJN, Ex. A.) The Court must balance its busy calendar with ensuring cases which receive preference absolutely require it.

Accordingly, Defendants’ motion for trial preference is DENIED.

CONCLUSION AND ORDER

Defendants Magnolia Vineland OPCO LLC and Westwood Financial LLC’s Motion for Trial Preference is DENIED.

MOVING PARTY shall provide notice.